Questionnaire: Funds managed by New Forests – Foresty plantations of AKD

MN-85053

Deadline to respond: 19 October 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing the proposed acquisition of forestry plantations of Associated Kiln Driers Pty. Limited (**AKD**) and Heywood Plantations Pty Ltd (together, **AKD Estate**) by the New Forests Australia New Zealand Landscapes and Forestry Fund (**ANZLAFF**) via the Trust Company Limited as trustee of ANZLAFF Sub 1 and the Trust Company Limited as trustee of ANZLAFF Sub 4 (**New Forests ANZLAFF**) (the **Acquisition**). Allianz will be a minor co-investor.

The New Forests ANZLAFF are managed by New Forests Asset Management Pty Limited (**New Forests Asset Management**), which is a wholly owned subsidiary of New Forests Pty Limited (**New Forests**). New Forests is a global investment manager of nature-based real assets including timber plantations, conservation areas, carbon and conservation finance projects, agriculture, timber processing and infrastructure.

New Forests Asset Management also manages the New Forests Australia New Zealand Forest Fund (**ANZFF**), which currently holds minority interests in two softwood log plantation estates within the Green Triangle forestry region, located between south-east South Australia and south-west Victoria. This is a separate fund from ANZLAFF.

ANZFF also holds a 100% interest in a sawmilling business at Tarpeena, located within the Green Triangle. This sawmill sources a majority of its logs from the Green Triangle.

AKD is an integrated Australian softwood forestry and timber processing company with softwood sawmilling operations. The AKD Estate consists of softwood log plantations across four regions being Green Triangle, Central Victoria (Ballarat and Otway), southern New South Wales and north-east Victoria (Murray Valley) and Central New South Wales (Central Tablelands) covering approximately 10,933 hectares. The Acquisition does not include AKD's sawmills.

Allianz is an insurance and financial services company headquartered in Munich, Germany.

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **19 October 2026** via email to

mergers@accc.gov.au with the title *Submission re: Funds managed by New Forests – Forestry plantation of AKD.* The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with the title *Request for call re: Funds managed by New Forests – Forestry plantation of AKD*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

1. Outline any concerns regarding the impact of the Acquisition on competition, including if any business controlled or managed by New Forests are close competitors to AKD Estate and identify any alternative suppliers or if one is a major supplier to competitors of the other for the supply of softwood logs.

2. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

3. Provide a brief description of your business or organisation, including any commercial relationships with New Forests and/or AKD.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and

in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**